



Delivered by the
National Disability
Insurance Agency

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Our reference: PID 2023/Krypton
Ombudsman's reference: Not applicable

Dr Richard McLean

By email: richarddrawsstuff@gmail.com

Private and Confidential

Dear Dr McLean

Public interest disclosure – Decision

I am writing to you about your emails of 18 April 2023 to PID@ndis.gov.au.

The purpose of my letter is to tell you:

- that I have decided, under the *Public Interest Disclosure Act 2013 (PID Act)*, not to allocate the handling of your disclosure to an agency
- about other courses of action that may be available to you.

My decision

I have decided not to allocate the handling of your disclosure to an agency under section 43(2) of the PID Act.

I have made this decision because I am satisfied that there is no reasonable basis on which your disclosure could be an internal disclosure. This is because I am not satisfied that you are a public official for the purposes of the PID Act.

The reasons for my decision are set out at **Attachment A**.

Other courses of action

I will not take any further action in relation to the emails that you have sent to PID@ndis.gov.au.

As required by section 44(3)(b) of the PID Act, other courses of action that may be available to you under other laws of the Commonwealth include:

- a complaint to the Commonwealth Ombudsman under the *Ombudsman Act 1976*
- an application for judicial review of my decision not to allocate your disclosure under the *Administrative Decisions (Judicial Review) Act 1977*.

You may also wish to consider:

- reporting a crime to the Australian Federal Police via https://forms.afp.gov.au/online_forms/report_a_crime
- reporting a crime to the Victoria Police via <https://onlinereporting.police.vic.gov.au/>
- reporting suspected fraud against Centrelink to Services Australia via https://www.centrelink.gov.au/wps/portal/clk_common/TORS#stay

Further assistance

I understand that you have made complaints to feedback@ndis.gov.au about the delay in responding to your disclosure. The Public Interest Disclosure Team is reviewing your complaints and will provide you with a response shortly.

If you have any questions, please contact PID@ndis.gov.au.

Yours sincerely



Debbie Mitchell
Authorised officer under the PID Act

31 May 2023

Reasons for decision

Background

I am an authorised officer of the National Disability Insurance Agency (NDIA) for the purposes of the PID Act.

On 18 April 2023, you contacted the PID@ndis.gov.au inbox.

On 2 May 2023, I wrote to you to ask you for more information about your emails to the PID@ndis.gov.au inbox under section 43(4) of the PID Act. In this letter, I told you that I was not sure whether you are a public official for the purposes of the PID Act and I asked you to tell me more about how you are a public official.

On 5 May 2023, you provided responses to my letter.

On 30 May 2023, you provided further responses to my letter.

Material considered

In making my decision, I have considered:

- your emails dated 18 April, 5 May, 17 May and 30 May 2023, including a letter from Mr Scott Tredwell, General Counsel, Federal Court of Australia, dated 27 March 2023, and a screenshot you provided of the NDIS Quality and Safeguards Commission portal
- my letter to you dated 2 May 2023
- the PID Act
- the *Public Interest Disclosure Standard 2013*
- the *Public Interest Disclosure Rules 2019*
- the Ombudsman's [Agency Guide to the Public Interest Disclosure Act 2013 \(Ombudsman's Guide\)](#)
- the NDIA's [Public Interest Disclosure Act 2013 Principal Officer's Procedures](#)
- the NDIA's Standard Operating Procedure entitled *Authorised Officers: Assessing potential internal public interest disclosures for allocation*
- consultations with officers of the Federal Court of Australia
- consultations with officers of the NDIA in relation to the NDIA's operating environment, including the NDIS Quality and Safeguards Commission Portal.

Internal public interest disclosure

Section 43(1) of the PID Act says that if a person discloses information to an authorised officer, the authorised officer must allocate the handling of the disclosure to one or more agencies. However, under section 43(2) of the PID Act, an authorised officer does not need to do this if they are satisfied, on reasonable grounds, that there is no reasonable basis on which the disclosure could be considered to be an internal disclosure.

Section 26 of the PID Act says that a disclosure of information is an internal disclosure if:

- the discloser is a public official
- the disclosure is made to an authorised internal recipient, and

- the information disclosed tends to show, or the discloser believes on reasonable grounds that the information tends to show, one or more instances of disclosable conduct.

The term 'public official' is defined in section 69 of the PID Act. This section says that the following are public officials for the purposes of the PID Act:

- Commonwealth public servants who work in Departments, executive agencies and prescribed authorities
- members of the Australian Defence Force
- appointees of the Australian Federal Police
- Parliamentary Services employees
- directors and staff members of a Commonwealth company
- statutory office holders
- any other person who exercises powers under a Commonwealth law
- people who are contracted service providers for a Commonwealth contract
- people who are officers or employees of contracted providers for a Commonwealth contract and who provide services for the purposes of that contract
- people who are subcontractors to a person who is a contracted service provider for a Commonwealth contract and who provide services for the purposes of that Commonwealth contract.

Section 30 of the PID Act sets out the meaning of the term 'Commonwealth contract'. In summary, a 'Commonwealth contract' is a contract:

- that the Commonwealth or a prescribed authority is a party to and
- under which goods or services are to be, or were to be provided:
 - to the Commonwealth or a prescribed authority or
 - for or on behalf of the Commonwealth or a prescribed authority, and in connection with the performance of its functions or the exercise of its powers.

Your disclosure

From your responses to my letter dated 2 May 2023, I understand that you believe that you are a public official for the purposes of the PID Act. Specifically, I understand that you think that you are or were:

- an employee of the Department of Social Services
- a person who is a contracted service provider under a Commonwealth contract, or
- a person who is an officer or employee of a contracted provider for a Commonwealth contract who provides services for the purposes of that contract.

I have addressed these points below.

I am not satisfied that you are or were a Commonwealth public servant

I acknowledge that you are of the view that you are or were an employee of the Department of Social Services and that you believe this is confirmed by a letter you received from Mr Tredwell dated 27 March 2023. Mr Tredwell's letter, sent to you in his capacity as an authorised officer for the purposes of the PID Act, states:

A public interest disclosure can only be made by a “public official”; paragraph 26(1)(a) PID Act. The meaning of “public official” is defined and includes current or past Australian Public Sector employees; section 69 PID Act. Section 30 of the PID Act extends this meaning to include employees of organisations which provide goods or services under a Commonwealth contract; subsection 30(3) PID Act. As a general principle an organisation which is a party to a contract that prescribes the terms for grant funding is not a contracted service provider for the purposes of the PID Act.

On the information you have provided me, I am satisfied that you are, or were, an employee with the Department of Social Services, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate.

I understand that Mr Tredwell was satisfied that you are or were an employee with the Department of Social Services, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate, on the basis of a screen shot of the NDIS Quality and Safeguards Commission portal that you provided to him. I note that you included the words ‘My Government employee login at department of social security’ above the copy of the screenshot of the NDIS Quality and Safeguards Commission portal that you provided to Mr Tredwell.

Having reviewed the screen shot you provided to Mr Tredwell (that you also provided to me), I am not satisfied that it shows that you are or were an employee of the ‘Department of Social Security’ or the Department of Social Services. Rather, in my view, it shows that ‘Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate’ is or was a National Disability Insurance Scheme (**NDIS**) provider and that you are or were an employee of your provider business entity. Therefore, notwithstanding Mr Tredwell’s previous decision, I am not satisfied that you are or were an employee of the Department of Social Services. As such, I am not satisfied that you are a public official for the purposes of the PID Act on the basis that you are or were a Commonwealth public servant.

I am not satisfied that you are or were a Commonwealth contractor

As set out above, I acknowledge that you are or were a NDIS provider trading under the name ‘Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate’. However, I note that, in general, NDIS providers (whether registered or unregistered) are not contracted service providers for a Commonwealth contract. This is because contracts for NDIS supports or services are usually between a NDIS provider and a NDIS participant. That is, they are not contracts between the NDIS provider and the NDIA or another Commonwealth Government Department or agency. This means that, except in very rare circumstances, which I am not satisfied exist here, the Commonwealth is not a party to agreements between a NDIS provider and a NDIS participant.

Having reviewed the material you have sent to me, I am not satisfied that you are a person who is a contracted service provider under a Commonwealth contract, or a person who is an officer or employee of a contracted provider for a Commonwealth contract who provides services for the purposes of that contract. As such, I am not satisfied that you are a public official for the purposes of the PID Act on either basis.

Conclusion

For these reasons, I am not satisfied that you are a public official for the purposes of the PID Act. Under section 43(2) of the PID Act, I have decided not to allocate the handling of your disclosure to an agency because I am satisfied that there is no reasonable basis on which your disclosure could be an internal disclosure.